

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
ELVIS GONZALEZ,

Plaintiff

- against -

**THE CITY OF NEW YORK,
JOSEPH SPINA (Tax ID No. 951296)
POLICE OFFICER JOHN DOE**

Defendants.

Index No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
July 7, 2017


ERIC D. LEVY, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(646) 755-8020

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****ELVIS GONZALEZ,****Plaintiff,****Index No.
Complaint****- against -****THE CITY OF NEW YORK,
JOSEPH SPINA (Tax ID No. 951296)
POLICE OFFICER JOHN DOE****Defendants.**

Plaintiff ELVIS GONZALEZ, by his attorney ERIC D. LEVY, ESQ., principal,
complaining of the Defendants, respectfully shows to this Court and alleges the following
upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ELVIS GONZALEZ ("MR. GONZALEZ") was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant PO JOSEPH SPINA, ("SPINA") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD"); At all times hereinafter mentioned, Defendant POLICE OFFICER JOHN DOE ("DOE") was and still is a police officer

employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to April 9, 2016, SPINA was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York; on and prior to April 9, 2016, DOE was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of SPINA AND DOE described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

6. On or about April 9, 2016, SPINA, acting as an agent, servant and employee of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. GONZALEZ of having committed the offenses of Excessive Noise and Disorderly Conduct; on or about April 13, 2016, DOE, acting as an agent, servant and employee of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely arrested MR. GONZALEZ without alleging or ever charging Plaintiff of violating any New York statute.

7. On or about April 9, 2016 and April 13, 2016, Defendants, their agents, servants and/or employees, intentionally placed MR. GONZALEZ under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

8. On or about April 9, 2016, a traffic summons and criminal court summons were issued at the directive of Defendants and a criminal action against MR. GONZALEZ

was commenced.

9. After his arrest on April 9, 2016, MR. GONZALEZ was detained by Defendants until he was released on or about April 9, 2016; on April 13, 2016, Plaintiff was once again detained and released.

10. On or about June 19, 2016, MR. GONZALEZ made a court appearance during which the criminal summons was terminated in favor of MR. GONZALEZ, in that all charges were dismissed and the records sealed; MR. GONZALEZ was informed by the DEPARTMENT OF MOTOR VEHICLES that the traffic ticket issued to him on April 9, 2016 was also dismissed.

11. As a result of the treatment of MR. GONZALEZ by the Defendants, MR. GONZALEZ was denied liberty by being falsely arrested and imprisoned.

12. MR. GONZALEZ suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained, MR. GONZALEZ suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

13. On May 24, 2016, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

14. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

15. This action has been commenced within one year and ninety days after the

cause of actions of Plaintiff accrued.

16. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

17. Paragraphs 1-16 are incorporated by reference as fully set forth herein.

18. On April 9, 2016 at approximately 6:30 p.m., while operating a motor vehicle in the vicinity of 181st St. and Creston Ave., Bronx County, New York, Defendant SPINA ordered Plaintiff's car to stop and wrongfully touched, grabbed, and seized MR. GONZALEZ, in an excessive manner about his person, causing MR. GONZALEZ physical pain and mental suffering. At no time did the Defendants have legal cause to grab, seize or touch Plaintiff. MR. GONZALEZ was aware of his arrest and confinement as described in paragraphs 1-17, and he did not consent to that arrest or confinement, nor was it privileged by law.

19. As a result of being falsely arrested by the Defendants, MR. GONZALEZ sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately more than 24 hours. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. The Defendants, their agents, servants and employees, arrested and

confined MR. GONZALEZ, as described in paragraphs 1-20, and intended to confine MR. GONZALEZ. MR. GONZALEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a result of being falsely imprisoned by the Defendants, MR. GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: FALSE ARREST

23. Paragraphs 1-22 are incorporated by reference as fully set forth herein.

24. On April 13, 2016 at approximately 7:30 p.m., while operating a motor vehicle in the vicinity of 184th St. and Morris Ave., Bronx County, New York, Defendant DOE ordered Plaintiff's car to stop and wrongfully touched, grabbed, and seized MR. GONZALEZ, in an excessive manner about his person, causing MR. GONZALEZ physical pain and mental suffering. At no time did the Defendants have legal cause to grab, seize or touch Plaintiff. MR. GONZALEZ was aware of his arrest and confinement as described in paragraphs 1-22, and he did not consent to that arrest or confinement, nor was it privileged by law.

25. As a result of being falsely arrested by the Defendants, MR. GONZALEZ sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately more than 24 hours. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: FALSE IMPRISONMENT

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. On April 13, 2016, the Defendants, their agents, servants and employees, arrested and confined MR. GONZALEZ, as described in paragraphs 1-25, and intended to confine MR. GONZALEZ. MR. GONZALEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

28. As a result of being falsely imprisoned by the Defendants, MR. GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ABUSE OF PROCESS

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.

30. In arresting MR. GONZALEZ, SPINA AND DOE, acting in his capacity as an agent, servant and employee of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

31. In arresting MR. GONZALEZ, SPINA AND DOE, acting in his capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to MR. GONZALEZ or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

32. As a result of the abuse of process by the Defendants, MR. GONZALEZ

sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: MALICIOUS PROSECUTION

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.

34. On or about April 9, 2016, and from that time until June 19, 2016, when Plaintiff's case was dismissed, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

35. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff.

36. The commencement of these criminal proceedings under Summons No. 4426458890 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

37. As a result of being maliciously prosecuted by the Defendants, MR. GONZALEZ was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

SEVENTH CAUSE OF ACTION: NEGLIGENCE

38. Paragraphs 1-37 are incorporated by reference as though fully set forth herein.

39. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

40. As a result of the negligence of the Defendants, MR. GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.

42. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training SPINA, as well as all of the other NYPD officers involved in this matter.

43. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

44. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

45. The foregoing acts, omissions and systematic failures are customs and

policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

46. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including SPINA.

47. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including SPINA AND DOE.

48. As a result of the negligence of Defendants CITY, SPINA and DOE, MR. GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT HIRING

49. Paragraphs 1-48 are incorporated by reference as though fully set forth herein.

50. Defendants CITY and NYPD had the responsibility for hiring SPINA AND DOE.

51. Defendants CITY and NYPD were negligent in hiring SPINA AND DOE.

52. As a result of the negligence of the Defendants, MR. GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

TENTH CAUSE OF ACTION

53. Paragraphs 1-52 are incorporated by reference as though fully set forth herein.

54. Defendants SPINA AND DOE were at all times relevant, a duly appointed and acting officers of the City of New York Police Department.

55. At all times mentioned herein, on April 9, 2016, SPINA was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York. Specifically, SPINA issued Plaintiff one traffic ticket and one criminal court summons and knowingly issued them without probable cause to issue either because he was ordered to do so by MAYOR BILL DE BLASIO.

56. At all times mentioned herein, on April 13, 2016, DOE was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York. Specifically, DOE ordered Plaintiff's car to stop and detained Plaintiff for no reason other than retaliation and to intimidate and humiliate Plaintiff because Plaintiff's actions of posting the video online of his car stop by SPINA on April 9, and said video went "viral" and was picked up by several New York media sources.

57. Plaintiff is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42 United States Code, section 1988.

58. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

59. On or about April 9, 2016 and again on April 13, 2016, the Defendants, armed police, while effectuating the seizure of the Plaintiff, did seize the person of Plaintiff

without a court authorized arrest warrant. They did physically seize the person of Plaintiff who was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

60. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

61. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United State Constitution.

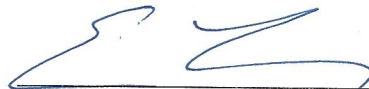
62. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the

jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
July 7, 2017

Yours, etc.,

A handwritten signature in blue ink, appearing to read 'Eric D. Levy', is written over a horizontal line.

ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
646-755-8020

INDIVIDUAL VERIFICATION

State of New York, County of The Bronx ss.:

ELVIS GONZALEZ

being duly sworn, deposes and says that deponent is the claimant in the within action; that she has read the foregoing Summons and Verified complaint and knows the contents thereof,

and that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief and that as to those matters deponent believes it to be true.

X 
ELVIS GONZALEZ

Sworn to before me, this 6th day of July, 2017.


Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020